

12.	30-2024-01399839 Lakeview Village Corp. vs. Coury	1. Motion for Bifurcation Motion for Bifurcation is denied without prejudice to be determined by the trial Judge before the start of trial. The order of proof at trial is generally <i>discretionary</i> with the trial judge. [Ev.C § 320—“Except as otherwise provided by law, the court in its discretion shall regulate the order of proof”]. Given the multiple pleadings at issue here consisting of both equitable and legal claims and defenses, the Judge who ultimately presides over the trial should determine the order of proof. Additionally, the Notice of Motion is defective and does not tell the Court precisely which causes of action or affirmative defenses should be heard first. [CCP § 1010; CRC 3.1110(a)] Clerk to give notice.
13.	30-2025-01518357 Carter vs. Built to Perfection, Inc	1. Case Management Conference 2. Motion to Compel Answers to Form Interrogatories Plaintiff Judith A. Carter (“Plaintiff”) moves to compel defendant Built to Perfection, Inc. (“Defendant”) to serve further responses to Plaintiff’s Form Interrogatories, Set One, Nos. 15.1, 17.1, and 50.1. <u>No. 15.1</u> In response to No. 15.1, Defendant provides no facts upon which it bases any of its denials or affirmative defenses. Nor does it provide the identities of any persons who have knowledge of the pertinent facts or identify any documents in support. While Defendant argues the interrogatory is premature, the Court finds this argument unpersuasive, as Defendant must have at least some knowledge of the basic facts underlying this action that would allow it to provide some substantive response. To the extent Defendant claims that the subcontractor entity that actually performed the roofing work is the only entity that can answer the interrogatory, further response indicating as such is warranted. Thus, the Motion to Compel as to No. 15.1 is GRANTED. <u>No. 17.1</u> Defendant’s responses to Requests for Admission Nos. 39 and 40 were not unqualified admissions yet Defendant did not include a response to Interrogatory No. 17.1 in relation to those Requests. The Court finds that further response to No. 17.1 to incorporate those Requests is warranted. Defendant provided the same response to No. 17.1 in relation to Requests for Admission Nos. 16, 17, 21-23, 25, 29-32, 36, 37. Plaintiff argues further response to No. 17.1 as to these Requests is warranted because the Requests concern different topics and issues and Defendant’s identical three sentence response is evasive. However, review of the Requests and response to No. 17.1 shows that Defendant’s response addresses each issue raised in the Requests (damage to the property, breach of the agreement, sufficiency of the work performed). Thus, the Court does not agree that the response is evasive. Based on the above, the Motion to Compel as to No. 17.1 is GRANTED as it relates to Requests 39 and 40 and DENIED as to the remaining Requests. <u>No. 50.1</u> In response to No. 50.1, Defendant states it is producing its entire job file, including any written agreements entered into with Plaintiff. Defendant contends no further response is warranted and cites to Code of Civil Procedure section 2030.230. That section provides, in relevant part: If the answer to

		an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained. This specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained. Defendant's answer is inadequate under section 2030.230, as Defendant has not specified the writings from which an answer to the Interrogatory may be derived or ascertained. Moreover, Defendant has failed to respond to each subpart of the Interrogatory. Thus, further response is warranted. The Motion to Compel as to No. 15.1 is GRANTED. <u>Monetary Sanctions</u> Monetary sanctions must be imposed unless the Court finds that Defendant acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Defendant's failure to properly respond to Nos. 15.1 and 50.1 and 17.1 as it relates to Requests for Admission Nos. 39 and 40 was without substantial justification. Thus, the Court GRANTS monetary sanctions in favor of Plaintiff against Defendant and Defendant's counsel, jointly and severally, in the amount of \$1,500.00. Further responses as ordered above are to be served within 15 days from the date of this order. Monetary sanctions are to be paid within 30 days from the date of this order. Moving party to give notice.
14.	30-2024-01402013 Lara vs. Volkswagen Group of America, Inc	1. Motion to Compel Deposition (Oral or Written) Defendant Volkswagen Group of America, Inc. ("Defendant" or "VWGoA") moves the Court for an Order compelling Plaintiff Manuel Lara to appear for a deposition by remote electronic means and produce documents within fifteen (15) days, or a date that the Court otherwise deems appropriate. Pursuant to CCP§2025.450 (a), "If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." Here, on April 29, 2026, Defendant served its Notice of Deposition of Mauel Lara ("NOD"), noticing the remote deposition for May 18, 2026. (Decl. of Konrad¶4.) On May 11, 2026, Plaintiff Manuel Lara electronically served objections to the NOD, indicating that he will not appear for the deposition due to unavailability and to meet and confer with Plaintiffs' counsel to schedule the deposition on a mutually agreeable date. (Id¶5.)